IN THE DISTRICT MAGISTRATE COURT HELD AT GBESE, ACCRA BEFORE HER WORSHIP ANNA AKOSUA APPIAAH GOTTFRIED ANAAFI GYASI (MRS.) ON WEDNESDAY THE 2ND DAY OF APRIL, 2025.

SUIT NO: A9/78/2021

EMMANUEL KORLEY MARTEY ::: PLAINTIFF

VRS.

MR. ERIC TWUM ::: DEFENDANT

Time: 10:01 am

Parties: Present.

No Legal Representation.

JUDGMENT

By a reference from the Chief Rent Manager dated 3rd February, 2021 the Plaintiff invoked the jurisdiction of this court for the following reliefs;

a. Eject respondent from the property forthwith, for complainant's use.
b. Make such orders as to costs or in connection with proceedings.

On 25th May, 2021, the Defendant filed a response without a counterclaim. The Plaintiff also filed a reply on 11th August 2021.

THE CASE OF THE PLAINTIFF

The reference from the Chief Rent Manager was due to Defendant's breach of agreed terms. According to Plaintiff at the rent office, the parties had an agreement to give

Plaintiff's land to Defendant to build and thereafter Defendant was to give the Plaintiff the cost of the building for him to refund the said amount and also an agreement for the years to be spent in the said building. Defendant failed or refused to abide by these terms hence the action at the rent office which was referred to the court.

THE CASE OF THE DEFENDANT

Defendant states that sometime in 2012, he contacted the nephew of the Plaintiff for a plot of land with which he would build and stay in for a number of years and thereafter hand the said building over to the owners. Defendant says that he was led to the mother of the Plaintiff, the landlady now deceased. Defendant avers further that the Plaintiff was brought in to witness the agreement as the son of the landlady and for this reason the Plaintiff has been privy to all that transpired including appending his signature to their agreement. Defendant avers further that they agreed that he put up a two-bedroom self-contained apartment on the land and stay there for 15 years and there after surrender possession to the landlady. Defendant says that he singlehandedly constructed the building without any contribution whatsoever from the Plaintiff or his mother. Defendant says that after the death of the landlady, the Plaintiff has resorted to one legal action or another and has been disturbing him all in a bid to get the Defendant out of the place. Defendant avers that unless the Plaintiff obtains Letters of Administration to administer the estate of Plaintiff's late mother, Plaintiff has no locus to initiate this action. Defendant further states that there have been instances where Plaintiff comes into the house with thugs to threaten him. Defendant avers that this is the third time Plaintiff has taken him to the Rent Control Office and at each time he takes a different plaint to there. Defendant says further that, in August, 2013, the Plaintiff reported to the Rent office that he was in occupation of his two bedroom self-contained apartment and had not paid rent for four (4) months, only for Plaintiff to produce their agreement and he never appeared again. Plaintiff again summoned the Defendant this time claiming that he is a footballer plying his trade abroad and has returned to Ghana because of the COVID and needs his room but the Defendant is refusing to give vacant possession of same. The Rent officer this time ordered that the property be valued so the Defendant is paid off and a letter was

given to them to go for the valuation but there again the Plaintiff disappeared only to surface with another petition. Defendant says that his tenancy has not yet expired and would plead with the Honourable Court to order the Plaintiff to desist from further disturbances and court summons and to allow Defendant to enjoy the rest of his tenancy in peace.

REPLY TO DEFENCE

Plaintiff says that the said land (property) on which the Defendant has put up the two-bedroom self -contained residence was bequeathed to him by his deceased mother, hence he is the landlord. Plaintiff says that his mother in her lifetime shared her property, two (2) plots of land among four siblings and that on his portion stands the two-bedroom self-contained residence. Plaintiff further says that Defendant never set his eyes on his mother let alone entering into any tenancy agreement with her prior to her death in the year 2014. According to the Plaintiff, the Defendant came in the company of Patrick Ofei his nephew to see to the development of the property. That was when he met Defendant for the very first time. Plaintiff avers that his mother was sick and therefore was confined indoors with stroke battling ill-health. He thus consented with the Defendant to develop the property. Plaintiff further claims that after completing the construction of the house, he was accompanied by Mr. Tennyson a cousin to his late father to see the Defendant to finalize proceedings for the tenancy agreement but met his absence. Plaintiff further states that he went the second time to see the Defendant for discussions with regards to the amount spent in the construction of the two-bedroom self-contained residence and also the tenancy agreement to be prepared. The Defendant then told the Plaintiff that he has no discussion whatsoever with him and he left the place disappointed and surprised. Plaintiff claims that his mother advised him to report the issue to Rent Control. Rent Control initially invited Defendant for a hearing but he never responded until there was police assistance when summoned a second time which caused the Defendant to respond. Plaintiff further claims that Defendant then disclosed to the rent Control officials that he has a tenancy agreement on the case so he was told to produce it at the said tenancy agreement on the next hearing. However, at the next hearing, Defendant said he could

not find the tenancy agreement. Plaintiff states that Rent Control then called for the assistance of Land Valuation authorities to ascertain the cost of the two-bedroom self-contained residence put up by Defendant. Plaintiff further claims that he and Defendant were given a note from rent control to be taken to Land Valuation. The two were told at Land Valuation to go and come the second time when they two are financially ready to sponsor the trip for the house valuation. Plaintiff turned up on the scheduled day but Defendant did not turn up so the valuation exercise did not see the light of day. Plaintiff claims he went back to Rent Control who then directed the case to Court for an amicable solution. Plaintiff asserts that he never at any point in time caused any disturbances, unrest or inconvenience to Defendant to grapple with as he alleged in his response. Plaintiff further claims that no tenancy agreement has been reached with the Defendant as he has stated and that what the Defendant has given to the Court is untrue and nothing but forgery. Defendant claims that the mother of the Plaintiff is the landlady while on the forgery tenancy agreement produced by him, the mother of the Plaintiff is no longer the landlady but a witness. Plaintiff is therefore pleading the Court to examine the purported tenancy agreement to show that the Defendant is being untruthful to the Court. Plaintiff further states that Defendant has never given Plaintiff a pesewa since he sublet the property to three different persons. Since 2013, Defendant has stayed at the premises a year and some months. Plaintiff prays this Court to cause the Defendant to vacate the premises immediately.

ISSUES

Whether or not there was a written agreement for Defendant to build on Defendant's property and to stay on as a tenant for 15 years.

THE LAW

The Burden and Persuasion of Proof

Evidence Act 1975 (N.R.C.D. 323)

In examining the case put forward by the parties, the court must be circumspect and deal with facts as well as the evidence adduced and most importantly the law. The law that this court will be instructed by are as follows:

Section 10

(1) For the purposes of this Act, the burden of persuasion means the obligation of a party to establish a requisite degree of belief concerning a fact in the mind of the tribunal of fact or the Court.

(b) to establish the existence or non-existence of a fact by a preponderance of the probabilities or by proof beyond a reasonable doubt.

Section 11

(1) For the purposes of this Act, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling on the issue against that party.

(4) In other circumstances the burden of producing evidence requires a party to produce sufficient evidence which on the totality of the evidence, leads a reasonable mind to conclude that the existence of the fact was more probable than its non-existence.

Section 12

1) Except as otherwise provided by law, the burden of persuasion requires proof by a preponderance of the probabilities.

(2) "Preponderance of the probabilities" means that degree of certainty of belief in the mind of the tribunal of fact or the Court by which it is convinced that the existence of a fact is more probable than its non-existence.

Section 15

Unless it is shifted,

(a) the party claiming that a person has committed a crime or wrongdoing has the burden of persuasion on that issue;

Section 17

Except as otherwise provided by law,

(a) the burden of producing evidence of a particular fact is on the party against whom a finding on that fact would be required in the absence of further proof;

(b) the burden of producing evidence of a particular fact is initially on the party with the burden of persuasion as to that fact.

In the case of **Mojolagbe v. Larbi and Others (1959) GLR 190,** which found favour in the case of **Ackah v Pergah Transport Ltd** supra the court held as follows:

"Proof, in law, is the establishment of fact by proper legal means; in other words, the establishment of an averment by admissible evidence. Where a party makes an averment, and his averment is denied, he is unlikely to be held by the Court to have sufficiently proved that averment by his merely going into the witness-box, and repeating the averment on oath, if he does not adduce that corroborative evidence which (if his averment be true) is certain to exist. … "Proof in law is the establishment of facts by proper legal means. Where a party makes an averment capable of proof in some positive way, e.g. by producing documents, description of things, reference to other facts, instances, or circumstances, and his averment is denied, he does not prove it by merely going into the witness-box and repeating that averment on oath, or having it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances, from which the Court can be satisfied that what he avers is true." …Therefore, the role of a trial judge "in a civil matter is to determine from the evidence available which of the parties adduced credible and sufficient evidence to tilt in his favour the balance of probabilities on an issue." (my emphasis)

In applying the above statute and case, in **Ackah v. Pergah Transport Ltd (2010) SCGLR 728 @ 736** the Supreme Court held:

"It is a basic principle of the law on evidence that a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail. The method of producing evidence is varied and

includes the testimonies of the party and material witnesses, admissible hearsay, documentary and things (often described as real evidence) without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the mind of the court or tribunal of fact such as a jury. It is trite law that matters that are capable of proof must be proved by producing sufficient evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact is more reasonable than its non-existence."

Rent Act, 1963, Act 220

Section 17—Recovery of Possession and Ejectment.

(1) Subject to the provisions of subsection (2) of section 25 and of section 28, no order against a tenant for the recovery of the possession of, or for the ejectment from, any premises shall be made or given by the appropriate Rent Magistrate, or any other Judge of a court of competent jurisdiction in accordance with the provisions of any other enactment for the time being in force, except in any of the following circumstances: —

(a) where any rent lawfully due from the tenant has not been paid or tendered within one month after the date on which it became lawfully due;

(b) where any obligation of the tenancy, other than that specified in paragraph (a), so far as such obligation is consistent with the provisions of this Act, has been broken or not performed;

(c) where the tenant or any person residing with him has been guilty of conduct which is a nuisance or an annoyance to adjoining occupiers;

(d) where the tenant or any person residing with him has been convicted of using the premises or allowing the premises to be used for an immoral or illegal purpose;

(e) where the condition of the premises has in the opinion of such Magistrate or Judge deteriorated owing to acts of waste by, or the neglect or default of, the tenant or any person residing with him;

(f) where the tenant has given notice of his intention to quit in writing and in consequence of such notice the landlord has contracted to sell or let the premises or has taken any other steps as a result of which he would, in the opinion of such Magistrate or Judge, be seriously prejudiced if he could not obtain possession;

(g) where the premises are reasonably required by the landlord for personal occupation as a dwelling house by himself, a member of his family or any person in his whole-time employment, such premises being constructed to be used as a dwelling house, so, however, that—

(i) the circumstance that the premises are reasonably required by the landlord for personal occupation by someone in his employ shall not be a sufficient circumstance if the Magistrate or Judge is not satisfied that such landlord usually provides premises for occupation by an employee of the class to which that employee belongs, and

(ii) no such order shall be made if the Magistrate or Judge is satisfied having regard to all the circumstances of the case, including any alternative accommodation available for the person for whose occupation the premises are so required or for the tenant, that greater hardship would be caused by granting the order than by refusing it;

(h) where the lease has expired and the premises are reasonably required by the landlord to be used by him for his own business purposes, such premises being constructed to be used as such, if the landlord has given not less than six months' written notice to the tenant of his intention to apply for an order for the recovery of the possession of, or the ejectment from, the premises;

(i) where the lease has expired and the tenant is a statutory tenant and the landlord—

(i) intends to pull down the premises and construct new premises,

(ii) intends to remodel the premises and the remodelling cannot be carried out with the tenant in occupation, or

(iii) requires possession of the premises to carry out a scheme of re-development, if the landlord has given not less than six months' written notice to the tenant of his intention

to apply for an order for the recovery of the possession of, or the ejectment from, the premises, so, however, that—

(aa) the Magistrate or Judge may, on making or giving an order under this paragraph, make it a condition that if the landlord fails to carry out his intention within such period as may be allowed by such Magistrate or Judge the landlord shall reinstate the former tenant as a statutory tenant at the same rent as that formerly payable or pay to the tenant such compensation as the Magistrate or Judge may consider reasonable,

(ab) the Magistrate or Judge shall cause a copy of such order to be served on the appropriate Rent Officer for the area where the premises are situated and such officer shall take such proceedings as are necessary to ensure compliance with the terms of the order, and

(ac) the making or giving of an order under this paragraph in the circumstances specified in paragraph (i) (ii) of this subsection shall be subject to any option of the tenant to acquire under the provisions of section 18, a new statutory tenancy of any premises remodelled to which such an order relates; (j) where the premises were let to the tenant by reason of his employment in the service of the landlord and such employment has ceased; and

(k) where the landlord was personally in occupation of the premises and has let the premises substantially furnished for a term during his absence from Ghana or that area of Ghana in which the premises are situated and has returned and requires the re-occupation of the premises for himself, so, however, that no order granting the possession of, or the ejectment from, the premises shall be granted on or after the commencement of this Act unless the lease is in writing and sets out that the lease has been granted for a term during the absence of the landlord from Ghana or such area.

ANALYSIS

The undisputed facts of the case, at least from the pleadings is that the parties entered an agreement for the Defendant to develop the land by constructing a two-bedroom self-contained dwelling house. The issue now is whether there was a written agreement to

that effect and whether the parties agreed that in exchange for the development, the Defendant will have possession of the said building for 15 years after which same will be handed over to the Plaintiff. The Plaintiff denies there ever being a written agreement whilst the Defendant says otherwise. According to Plaintiff's testimony in his witness statement, the Defendant was to disclose how much he spent on constructing the building and that was to determine how long the Defendant was to stay there in exchange for the construction. Plaintiff reported the matter to rent control and the parties were referred to the Land Valuation Division to have the property evaluated. In all this Defendant appeared once claiming he had a tenancy agreement but never showed up again. Defendant in his testimony states that there was an agreement between himself and Plaintiff's mother for the construction of the building of which Defendant was witness, then a tenancy agreement between Plaintiff and Defendant. What is unclear is whether the said build operate and transfer agreement also contained the tenancy agreement and/ or vice versa.

What is before this court as documentary evidence is the summons from the Rent Control Department, record of proceedings from the Rent Control Department, a letter of police assistance and confirmation of service on Defendant of the summons to appear at rent control and a reference to a rent magistrate from the Chief Rent Officer. These were exhibited by Plaintiff. Defendant exhibited Form 7 (complaint against conduct of landlord/tenant/person interested in premises), summons to appear before the rent officer, tenancy agreement between Plaintiff and Defendant and a residential house lease agreement. From the testimony of the Defendant, there was a written agreement between the Plaintiff's mother and Defendant. However, this was not exhibited. The tenancy/lease agreement that was exhibited is being protested by the Plaintiff as a forgery.

The Plaintiff's case in this court has always been that no written agreement exists between the parties and that the Defendant was to let him know the cost and then based on that the parties will determine the way forward. The Defendant has been adamant about the existence of a written agreement. Defendant's exhibit EAT 1 shows that Plaintiff complained that he gave out his property to the Defendant who has refused to pay rent

to him and now requires the property for his personal use. Under cross examination, and in his pleadings, Plaintiff admitted that the Defendant had indeed built on his land.

I find the need to address a pertinent issue concerning the tenancy/lease agreement that was exhibited by the Defendant. This instrument, being a document that determines the rights and liabilities of the parties is an instrument that affects land and must be stamped. Section 32 of Act 689 provides:

"(1) Where an instrument chargeable with a duty is produced as evidence

(a) in a Court in a civil matter, or

(b) before an arbitration or referee, the judge, arbitrator or referee, shall take notice of an omission or insufficiency of the stamp on the instrument.

(2) If the instrument is one which may legally be stamped after its execution, it may, on payment of the amount of the unpaid duty to the registrar of the Court or to the arbitrator or referee, and the penalty payable on *stampi*ng that instrument, be received in evidence subject to just exception on other grounds.

(3) An instrument which is sufficiently stamped under this Act shall be receivable in evidence although that instrument may not have been stamped or is insufficiently stamped according to the law in force in the place where that instrument was executed.

(4) The registrar, arbitrator or referee shall

(a) give a receipt for moneys paid as duty or penalty; …

(6) Except as expressly provided in this section, an instrument

(a) executed in Ghana, or

(b) executed outside Ghana but relating to property situate or to any matter or thing done or to be done in Ghana, shall except in criminal proceedings, not be given in evidence or be available for any purpose unless it is stamped in accordance with the law in force at the time when it was first executed."

In ***Nii Aflah II v. Benjamin K. Boateng Supreme Court · Civil Appeal No. J4/80/2022 · 22 Mar 2023 · Ghana*** the Court held reiterating the judgment in ***Gaizie Zwennes Hughes Others Co. v. Loders Crocklaan Bv[2012]1 SCGLR 363*** that *"No judge has authority to grant immunity to a party from the consequence of breaching an Act of Parliament".*

In the case of **PIH Company Limited vs. Stephanie Benson Suit No. CM/RPC//0812/2017** dated 14th June, 2023 the High Court was confronted with a similar issue of determining whether or not the tenancy agreement was liable to stamping. The court held as follows: *"It is therefore evident that … Tenancy Agreement defining the rights and liabilities of the Parties herein, required stamping to be admissible in evidence. In the absence of stamping, it becomes quite clear that the said exhibit upon which Plaintiff's claim is founded, cannot be considered by this Court. Both statute and case law as already noted, point to the fact that the same ought to have been rejected at the trial even without any objection from the opposing side."*

In the present case, clearly, following precedent, this court must reject the tenancy/lease agreement as it has not been stamped. It is thus immaterial if the tenancy agreement was authentic or otherwise as same cannot be considered at this time.

Having excluded the tenancy/lease agreement, it still behoves on this court to consider other pieces of evidence to determine the rights of the parties. These include the testimony of the witnesses, and other documentary evidence. PW1 states that DW1 told him that DW1 and Defendant signed the agreement and therefore the said agreement was forged. As already stated the said agreement has been excluded in the evaluation of evidence. Apart from this information, PW1 was not there as a witness from the beginning. Under cross examination the following ensued:

Q: I signed a contract with your nephew in 2012 to construct 2 bedroom apartment with my own resources, were you there when we negotiated for the contract?

A: No.

Q: How then do you become a witness to this agreement?

A: The case was filed at Adjabeng Court that was how I got to know about the case and also got to know you.

Q: I put it to you that you are not legitimate to be a witness on concerning this matter?

A: I can be a witness in this case because when the case came to Adjabeng Court, I was there and heard all that transpired. When the case came the Defendant's Counsel invited the Plaintiff, myself and the Defendant we went to Papaye restaurant at Tesano and we discussed this issue, so I can be a witness in this matter.

A lot of the cross examination centred on the excluded written agreement as such this will be excluded in the analysis. However, to establish that indeed there was an agreement between Plaintiff and Defendant, the following ensued:

Q: You mentioned that money was paid to the Plaintiff, can you tell the court the exact amount?

A: I do not know.

Q: I put it to you that, Five Hundred (500) Ghana cedis was paid to Plaintiff which he denied ever receiving such amount in his witness statement?

A: It is not true that he was given that amount and he was not part of the agreement.

Considering that PW1 was not present when the agreement to build the house in dispute, any information received would be secondary and therefore cannot be relied on.

DW1 states that he introduced the parties and was there when the Defendant entered the agreement with Plaintiff's mother and then Plaintiff. DW2 claims to have witnessed the execution of the agreements and also that the Defendant paid royalties to the Plaintiff. Both of Defendant's witnesses are relatives of Plaintiff I must note. Since it is undisputed that the Defendant did build the property but Plaintiff wants the said property back, the question is if the Plaintiff can recover possession. The Plaintiff's capacity went unchallenged. Section 17 (g)(ii) of the Rent Act 220 states as follows:

(g) where the premises are reasonably required by the landlord for personal occupation as a dwelling house by himself, a member of his family or any person in his whole-time employment, such premises being constructed to be used as a dwelling house, so, however, that—

(ii) no such order shall be made if the Magistrate or Judge is satisfied having regard to all the circumstances of the case, including any alternative accommodation available for the person for whose occupation the premises are so required or for the tenant, that greater hardship would be caused by granting the order than by refusing it;

In the Plaintiff's reliefs, he does state that he needs the property for his use. Act 220 is very clear on when or at what point a person may eject a person as reproduced supra. Since it is undisputed that the Defendant built on Plaintiff's property, from the evidence on record, I can safely conclude that this could not have happened without some form of agreement. What remains to be determined is if the Plaintiff had agreed for Defendant to stay in the property for a specified period of time. The Plaintiff denies doing so whereas the Defendant states that there was a written agreement. In the absence of a reliable source of written agreement, it has become an issue of 'your word against mine'. The Defendant alludes to an agreement with Plaintiff's mother which Plaintiff disputes. This could have been proved by the Defendant exhibiting the said agreement which he did not. What he did exhibit which the court has already excluded was not even between the Plaintiff's mother and the Defendant. The Defendant's witnesses claim to have witnessed the giving of money (royalties) to the Plaintiff and an agreement determining how long Defendant would stay in the building for. In cross examining the Defendant the Plaintiff put the following question to him:

Q: Do you remember that I after you put up the said 2 bedroom self-contain I invited you to come and sit down with me to do the calculation and know the total amount you spent in putting up the 2-bedroom house but you didn't come?

A: That is not correct because agreement was done before the commencement of the building.

I am not sure what and how the parties arrived at the 15-year mark before the building was even constructed as I take judicial notice of how prices of building materials fluctuate. Nevertheless, in the absence of evidence of a written agreement, the details of the agreement are really not certain. "It is trite law that matters that are capable of proof must be proved by producing sufficient evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact is more reasonable than its non-

existence." See Ackah v. Pergah Transport Ltd. Since Plaintiff has denied the existence of a written agreement, it rested on Defendant to produce the said agreement. This is because "Where a party makes an averment capable of proof in some positive way, e.g. by producing documents, description of things, reference to other facts, instances, or circumstances, and his averment is denied, **he does not prove it by merely going into the witness-box and repeating that averment on oath, or having it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances, from which the Court can be satisfied that what he avers is true**." From the evidence on record, the Defendant has not quite satisfied this court that there was an agreement for Defendant to be in the property for 15 years post construction.

To put the matter to rest, the best way forward is to have the property valued, deduct the number of years spent in the property and paying the Defendant the difference. For this to be reasonable, the court must "be satisfied having regard to all the circumstances of the case, including any alternative accommodation available for the person for whose occupation the premises are so required or for the tenant, that greater hardship would be caused by granting the order than by refusing it". In his evidence in chief, Defendant stated that he lives at Kasoa. This evidently is not where the disputed property is located. Therefore, the Defendant does have alternative accommodations.

In a regular tenancy agreement, section 22 Act 220 precludes a tenant from subletting the property to anyone without the express consent of the landlord: Section 22

(1) No person, in the case of a monthly or shorter tenancy of any premises, shall sub-let such premises without the written consent of his landlord.

(2) No person in the case of a tenancy of any premises, other than the tenancy specified in subsection (1), shall sub-let such premises, in the absence of express agreement in writing to the contrary, for a period in excess of the period of his tenancy.

(3) Every person sub-letting his premises shall inform the landlord of such premises in writing within fourteen days after he has so sub-let the premises the fact of such sub-letting and its terms.

The Plaintiff herein says the Defendant has sublet the disputed premises on three different occasions without giving anything to Plaintiff. This was not denied by Defendant but the fact of Defendant having a tenant being on the premises was confirmed by the Defendant under cross examination:

Q: In your Witness Statement you said that you filed an exhibit that police came and served me with a summon in 2020 which is not true because I left the house in 2017. I put it to you.

A: It is true. I went to rent control and they gave me a letter to Dansoman police station and the police officers went to his house to serve him. He had vacated by then so they met another tenant in the house. So the tenant was invited to the police station and was served at the Police station to be given to the Defendant.

Q: I put it to you that it is not true that I did not receive any summon from my tenant?

A: That is not true. The Defendant reported at the rent control so he was served.

This amounts to a breach of an agreement if the parties consider themselves in a landlord and tenant relationship which they do. Considering the presence of a tenant which was not lawfully contracted, the Plaintiff is at liberty to maintain the said tenant provided the rent due for remainder of the said tenancy is paid to Plaintiff by Defendant. The Plaintiff also has the option to eject the said tenant.

FINAL ORDERS

1. The Defendant is ordered to vacate the premises within 3 months subject to property being valued with both parties bearing the cost.

2. Upon the determination of the value of the property, the current rent rate (determined by the rent department) is to be deducted from the number of years

the Defendant has spent on the premises from 2012 till date and the balance given to Defendant.

3. Costs of GH₵20,000.00 is awarded in favour of Plaintiff against Defendant.

(SGD.)

H/W. ANNA AKOSUA APPIAAH GOTTFRIED ANAAFI GYASI (MRS.)

(DISTRICT MAGISTRATE)